

**THE CHILD MARRIAGE RESTRAINT ACT,
1929
(XIX of 1929)**

CONTENTS

1. Short title, extent and commencement.
2. Definitions.
3. *[Omitted]*
4. Punishment for marrying a child.
5. Punishment for solemnising a child marriage.
6. Punishment for parent or guardian concerned in a child marriage.
7. Imprisonment not to be awarded for offences under section 3.
8. Jurisdiction under this Act.
9. Cognizance of offence and trial.
10. Preliminary inquiries into offences under this Act.
11. *[Omitted]*
12. Power to issue injunction prohibiting marriage in contravention of this Act.

TEXT

¹THE CHILD MARRIAGE RESTRAINT ACT, 1929

(XIX of 1929)

[18 October 1929]

An

Act

to restrain the solemnisation of child marriages.

WHEREAS it is expedient to restrain the *solemnisation* of child marriages;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Child Marriage Restraint Act, ²[1929].

³[(2) It extends to the whole of ⁴[the Punjab] and applies to all citizen of Pakistan wherever they may be.]

(3) It shall come into force on the 1st day of April 1930.

⁵**2. Definitions.**— In this Act:

- (a) "child" means a person who, if a male, is under eighteen years of age, and if a female, is under sixteen years of age;
- (b) "child marriage" means a marriage to which either of the contracting parties is a child;
- (c) "Government" means Government of the Punjab;
- (d) "minor" means person of either sex who is under eighteen years of age; and
- (e) "Union Council" means a Union Council, Municipal Committee, Cantonment Board, a Union Administration or, in case of absence of any of these local governments in a local area, any other comparable body constituted under any law relating to the local governments or local authorities.]

⁶**3. * * * * ***

¹This Act received the assent of the Governor-General on October 1, 1929, published in the Punjab Gazette, Part IV, dated October 18, 1929, pp. 119-120. For Statement of Objects and Reasons, see Gazette of India, 1927, Part V, p. 28; and for Report of the Select Committees, see Gazette of India, 1928, Part V, pp. 111-165. This Act was originally in the Federal ambit, however, the subject on which this law was enacted, devolved to the provinces by virtue of 18th Amendment in the Constitution, hence it was adapted, with amendments, for the Province of the Punjab Child Marriage Restraint (Amendment) Act 2015 (XII of 2015).

²Substituted for the figure "1928" by the Repealing and Amending Act, 1930 (VIII of 1930), published in the Punjab Gazette, Part IV, pp. 143-144, s. 2 read with First Schedule.

³Substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), (w.e.f. 14.10.1955), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Second Schedule, which were earlier substituted by the Federal Laws (Revision and Declaration) Act 1951 (XXVI of 1951), s. 8, which were earlier omitted the words "and the Sonthal Parganas" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), (w.e.f. 28.3.1949), Articles 3(2) and 4 and published in the Gazette of Pakistan, pp. 223-283.

⁴Substituted for the word "Pakistan" by the Punjab Child Marriage Restraint (Amendment) Act 2015 (XII of 2015), published in the Punjab Gazette (Extraordinary) dated March 18, 2015, pp. 3443-3444, s. 2.

⁵Substituted *ibid.*, s. 3.

⁶Omitted by the Muslim Family Laws Ordinance, 1961 (VIII of 1961), published in the Gazette of Pakistan (Extraordinary), dated March 2, 1961, pp. 693c- 693g, s. 12(2).

¹**4. Punishment for marrying a child.**— If a person, not being a minor, contracts child marriage, he shall be liable to punishment of simple imprisonment which may extend to six months and fine of fifty thousand rupees.]

5. Punishment for solemnising a child marriage.— Whoever performs, conducts or directs any child marriage shall be punishable with simple imprisonment which may extend to ²[six months and fine of fifty thousand rupees], unless he proves that he has reason to believe that the marriage was not a child marriage.

6. Punishment for parent or guardian concerned in a child marriage.— (1) Where a minor contracts a child marriage, any person having charge of the minor, whether as parent or guardian or in any other capacity, lawful or unlawful, who does any act to promote the marriage or permits it to be solemnised, or negligently fails to prevent it from being solemnised, shall be punishable with simple imprisonment which may extend to ³[six months and fine of fifty thousand rupees]:

Provided that no woman shall be punishable with imprisonment.

(2) For the purposes of this section, it shall be presumed, unless and until the contrary is proved, that, where a minor has contracted a child marriage, the person having charge of such minor has negligently failed to prevent the marriage from being solemnised.

7. Imprisonment not to be awarded for offences under section 3.— Notwithstanding anything contained in section 25 of the General Clauses Act, 1897⁴, or section 64 of the Indian Penal Code⁵, a Court sentencing an offender under section 3 shall not be competent to direct that, in default of payment of the fine imposed, he shall undergo any term of imprisonment.

8. Jurisdiction under this Act.— Notwithstanding anything contained in section 190 of the Code of Criminal Procedure, 1898⁶, no court other than that of ⁷[* * *] a ⁸[Magistrate of the first class] shall take cognizance of, or try, any offence under this Act.

⁹**9. Cognizance of offence and trial.**— (1) A Family Court shall not take cognizance of any offence under this Act except on a complaint made by the Union Council.

(2) A Family Court exercising the powers of a Judicial Magistrate of the first class shall conduct the trial of an offence under this Act in accordance with the provisions of Family Court Act, 1964 (XXXV of 1964).]

10. Preliminary inquiries into offences under this Act.— The court taking cognizance of an offence under this Act shall, unless it dismisses the complaint under section 203 of the

¹Substituted by the Punjab Child Marriage Restraint (Amendment) Act 2015 (XII of 2015), published in the Punjab Gazette (Extraordinary) dated March 18, 2015, pp. 3443-3444, s. 4.

²Substituted for the words "one month, or with fine which may extend to one thousand rupees, or with both" *ibid.*, s. 5.

³*Ibid.*, s. 6.

⁴X of 1897.

⁵Now it is titled as 'the Pakistan Penal Code, 1860' (XLV of 1860).

⁶V of 1898.

⁷Omitted by the Adaption of Central Acts and Ordinances Order, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp 223-283, Article 3(1) read with Schedule.

⁸Substituted for the words "District Magistrate" by the Child Marriage Restraint (Second Amendment) Act, 1938 (XIX of 1938), published in the Gazette of India, Part IV, dated April 16, 1938, pp. 147-148, s. 3.

⁹Substituted by the Punjab Child Marriage Restraint (Amendment) Act 2015 (XII of 2015), published in the Punjab Gazette (Extraordinary) dated March 18, 2015, pp. 3443-3444, s. 7.

Code of Criminal Procedure, 1898¹, either itself make an inquiry under section 202 of that Code, or direct a Magistrate of the first class subordinate to it to make such inquiry.

²[11. * * * * *]

³**[12. Power to issue injunction prohibiting marriage in contravention of this Act.–** (1) Notwithstanding anything to the contrary contained in this Act, the Court may, if satisfied from information laid before it through a complaint or otherwise that a child marriage in contravention of this Act has been arranged or is about to be solemnised, issue an injunction against any of the persons mentioned in sections 3, 4, 5 and 6 of this Act prohibiting such marriage.

(2) No injunction under sub-section (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issue of the injunction.

(3) The Court may either on its own motion or on the application of any person aggrieved rescind or alter any order made under sub-section (1).

(4) Where such an application is received, the Court shall afford the applicant an early opportunity of appearing before it either in person or by pleader; and if the Court rejects the application wholly or in part, it shall record in writing its reasons for so doing.

(5) Whoever knowing that an injunction has been issued against him under sub-section (1) of this section disobeys such injunction shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both:

Provided that no woman shall be punishable with imprisonment.]

¹V of 1898.

²Omitted by the Muslim Family Laws Ordinance, 1961 (VIII of 1961), published in the Gazette of Pakistan (Extraordinary), dated March 2, 1961, pp. 693c- 693g, s. 12(5).

³Inserted by the Child Marriage Restraint (Second Amendment) Act, 1938 (XIX of 1938), published in the Gazette of India, Part IV, dated April 16, 1938, pp. 147-148, s. 6.